

Court No. - 29

Case :- WRIT - C No. - 34800 of 2019

Petitioner :- Banshi Lal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Krishna Chandra Pandey

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Pankaj Mithal,J.

Hon'ble Vivek Agarwal,J.

Heard Sri K.C. Pandey, learned counsel for the petitioner and Sri Narendra Kumar Tiwari, learned counsel appearing for the respondent Nos.2 and 3.

The petitioner has preferred this writ petition against the demand notice dated 01.01.2019 whereby the Executive Engineer has demanded a sum of Rs.1,52,656/- as arrears of electricity charges from the petitioner.

The submission of learned counsel for the petitioner is that the amount demanded is excessive and not correct. The dispute with regard to the correctness of the demand can be raised by the petitioner if necessary by taking recourse to Clause 6.5 of the U.P. Electricity Supply Code, 2005.

In view of the aforesaid facts and circumstances, we dispose of the writ petition with liberty to the petitioner to approach the Executive Engineer as aforesaid within a period of two weeks from today. In case, any such representation is filed, the Executive Engineer shall consider and decide it in accordance with law most expeditiously, if possible, within a period of one month, thereafter.

The writ petition is disposed off.

Order Date :- 31.10.2019

Ashutosh